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IN THE CIRCUIT COURT OF THE
FOURTH JUDICIAL CIRCUIT, IN AND
FOR DUVAL COUNTY, FLORIDA

CASE NO.:
DIVISION:

LATISHA DAISE,
an individual,

Plaintiff

vs.

E&J GALLO WINERY, INC., a foreign profit
corporation, and **KATHARINE ELOISE**
MERCER, an individual,

Defendants.

COMPLAINT

Plaintiff, LATISHA DAISE hereby sues Defendants, E&J GALLO WINERY, INC., and
KATHARINE ELOISE MERCER, and states as follows:

COMMON ALLEGATIONS AS TO ALL COUNTS

1. This is an action for damages that exceeds the sum of THIRTY THOUSAND DOLLARS (\$30,000.00), exclusive of costs, interest and attorneys' fees (The estimated value of Plaintiff's claim is in excess of the minimum jurisdictional threshold required by this Court). Accordingly, Plaintiff has entered "\$30,001" in the civil cover sheet for the "estimated amount of the claim" as required in the preamble to the civil cover sheet *for jurisdictional purposes only* (the Florida Supreme Court has ordered that the estimated "amount of claim" be set forth in the civil cover sheet for data collection and clerical purposes only). The actual value of Plaintiff's claim will be determined by a fair and just jury in accordance with Article 1, Section 21, Fla. Const.

2. At all times material hereto, including May 23, 2019, Plaintiff, LATISHA

DAISE, was and remains a resident of Duval County, Florida.

3. At all times material hereto, including May 23, 2019, Defendant, KATHARINE ELOISE MERCER was a resident of Forsyth County, Georgia.

4. At all times material hereto, including May 23, 2019, Defendant, E&J GALLO WINERY, INC., was and remains a foreign profit corporation that regularly conducted systematic and customary business activity; and maintained agents, employees, and property for that purpose; in the State of Florida.

5. At all times material hereto, including May 23, 2019, Plaintiff, LATISHA DAISE, was operating a 2007 Chevrolet Impala motor vehicle southbound at 4660 Salisbury Road in Duval County, Florida.

6. At that time and place, Defendant KATHARINE ELOISE MERCER was operating a 2019 Chevrolet Malibu southbound at 4660 Salisbury Road in Duval County, Florida.

7. At all times material hereto, including May 23, 2019, Defendant, KATHARINE ELOISE MERCER, was an employee of Defendant, E&J GALLO WINERY, INC., acting in the course and scope of her employment with E&J GALLO WINERY, INC.

8. At all times material hereto, including May 23, 2019, Defendant, KATHARINE ELOISE MERCER, was operating the 2019 Chevrolet Malibu motor vehicle with the knowledge and consent of Defendant, E&J GALLO WINERY, INC.

9. On May 23, 2019 and at the location referenced above, Defendant, KATHARINE ELOISE MERCER, negligently operated and/or negligently maintained the subject 2019 Chevrolet Malibu motor vehicle so that it collided with, and rear-ended the vehicle driven by Plaintiff, LATISHA DAISE.

COUNT I
(LATISHA DAISE v. KATHARINE ELOISE MERCER)

10. Plaintiff, LATISHA DAISE, realleges and reaffirms paragraphs 1-9 as set forth above.

11. At all times material hereto, including May 23, 2019, at the above-described place, Defendant, KATHARINE ELOISE MERCER, negligently operated or maintained the subject 2019 Chevrolet Malibu motor vehicle so that it collided with the vehicle driven by Plaintiff, LATISHA DAISE.

12. As a result of the above-described negligence of Defendant, KATHARINE ELOISE MERCER, the Plaintiff, LATISHA DAISE, suffered bodily injury within a reasonable medical probability, and resulting pain and suffering, impairment, disability, disfigurement, mental anguish, loss of past earnings/income, diminished earning capacity, loss of capacity for the enjoyment of life, medical care and treatment, medical expenses, and aggravation of pre-existing injuries and/or conditions. These injuries and damages to the Plaintiff are permanent within a reasonable degree of medical probability, and the Plaintiff will suffer such damages and losses in the future.

WHEREFORE, Plaintiff, LATISHA DAISE, demands judgment against Defendant, KATHARINE ELOISE MERCER, for damages and costs of suit, together with such other relief as the Court may deem appropriate and demands a trial by jury on all issues so triable.

COUNT II
(LATISHA DAISE v. E&J GALLO WINERY, INC.)
(Negligence for Vicarious Liability for its Employee)

13. Plaintiff, LATISHA DAISE, realleges and reaffirms paragraphs 1-9 as set forth above.

14. At all times material hereto, including May 23, 2019, Defendant, KATHARINE ELOISE MERCER, was an employee of Defendant, E&J GALLO WINERY, INC.

15. At all times material hereto, including May 23, 2019, Defendant, KATHARINE ELOISE MERCER, was operating the subject 2019 Chevrolet Malibu motor vehicle for Defendant, E&J GALLO WINERY, INC., in the course and scope of her employment with E&J GALLO WINERY, INC., and with the knowledge and consent of E&J GALLO WINERY, INC.

16. At all times material hereto, including May 23, 2019, at the above-described place, Defendant, KATHARINE ELOISE MERCER, negligently operated or maintained the subject 2019 Chevrolet Malibu motor vehicle so that it collided with the vehicle driven by Plaintiff, LATISHA DAISE.

17. At all times material hereto, including May 23, 2019, Defendant, E&J GALLO WINERY, INC., is vicariously responsible for the actions of its employee, Defendant, KATHARINE ELOISE MERCER.

18. As a result of the above-described negligence, the Plaintiff, LATISHA DAISE, suffered bodily injury within a reasonable medical probability, and resulting pain and suffering, impairment, disability, disfigurement, mental anguish, loss of earnings/wages, diminished earning capacity, loss of capacity for the enjoyment of life, medical care and treatment, medical expenses, and aggravation of pre-existing injuries and/or conditions. These injuries and damages to the Plaintiff are permanent within a reasonable degree of medical probability, and the Plaintiff will suffer such damages and losses in the future.

WHEREFORE, Plaintiff, LATISHA DAISE, demands judgment against Defendant, E&J GALLO WINERY, INC., for damages and costs of suit, together with such other relief as the Court may deem appropriate and demands a trial by jury on all issues so triable.

DEMAND FOR JURY TRIAL

Plaintiff demands trial by jury of all issues so triable.

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